

AMERICAN FORK CITY COUNCIL
DECEMBER 11, 2018
REGULAR SESSION MINUTES

Members Present:

Brad Frost	Mayor
Kevin Barnes	Council Member
Staci Carroll	Council Member
Barbara Christiansen	Council Member
Rob Shelton	Council Member
Clark Taylor	Council Member

Staff Present:

David Bunker	City Administrator
Wendelin Knobloch	Associate Planner
Lauralee Hill	Deputy City Recorder
Aaron Brems	Fire Chief
Kyle Maurer	Finance Officer
George Schade	IT Director
Timothy Merrill	Legal Counsel
Adam Olsen	Senior Planner
Darren Falslev	Police Chief
Derric Rykert	Parks and Recreation Director
Scott Sensanbaugher	Public Works Director

Also present: Lt. Cameron Paul, John Woffinden, former AF City Mayor Ted Barrett, and several others. Scouts present: Crew Nielsen and leader (no troop listed).

REGULAR SESSION

The American Fork City Council met in a regular session on **Tuesday, December 11, 2018, in the American Fork City Hall, 31 North Church Street, commencing at 7:30 p.m.** The agenda was as follows:

The meeting was called to order by Mayor Frost at 7:30 p.m.

1. Pledge of Allegiance; prayer by Council Member Carroll; roll call.

Mayor Frost led the pledge of allegiance. Council Member Carroll offered the opening prayer. Roll call taken.

2. Twenty-minute public comment period - limited to two minutes per person.

There were no public comments.

3. City Administrator's Report

Mr. Bunker reported the Fitness Center was sponsoring a "maintain, don't gain" program. Many in the community and members of staff were participating. He reported they would hold the annual Health and Fitness Fair where blood sugar and heart rate testing would be offered. He also reported the Police Department had an event called Shop with a Cop. Officers took children to breakfast and used a \$175 gift card to purchase whatever the children wanted. Mr. Bunker reported they would be holding a Community Survey online for residents to gauge how American Fork City was

performing. He encouraged residents to take the survey. He noted the cemetery had a new directory for every gravesite that was covered, lit, and listed everyone who is interred in cemetery.

4. Council Reports

Council Member Christiansen recognized contributions made by citizens to the community. She specifically made mention of music and mentioned choirs and other school concerts.

Council Member Shelton reported that he attended the Beautification Committee meeting, which was a potluck intended to strengthen board member relationships. At the meeting, the Beautification Committee requested that the Council provide feedback on areas of focus for the committee. He also reported that he attended the North Pointe Solid Waste meeting, where the Board adopted its annual budget. There would be budgetary increases this year. Typically, they did not like to raise fees every year because change was less efficient. He noted that the increases would bring \$110,000 in extra revenue to the County and specifically would cost American Fork approximately \$10,000. He noted they would be now charging a separate fee for mattresses; it was problematic to dispose of the mattresses, thereby causing the extra fee. He said the Council needed to discuss whether to opt out of the contract. He added that he had an early meeting about finances with Mr. Maurer and Mr. Bunker. He concluded by thanking staff for assisting an American Fork resident with a recent issue.

Council Member Barnes had nothing to report.

Council Member Carroll reported that she attended the Utah County Business Summit sponsored by the Chambers of Commerce in American Fork, Pleasant Grove, Lindon, and Lehi. This was an opportunity for networking and presentations. Leaders from UDOT and UVU attended and gave presentations. The event was well attended. In addition, she participated in the Chamber's "Christmas on Main".

Council Member Taylor reported that he attended the PARC Committee Meeting, which he described as a competent group. They were moving their orientation meeting up one month to January. They were concerned about demonstrating the success of the funding they received. Finally, to show responsibility to citizens, they wanted to send a survey out to the citizens to see how they felt about the allocations of the PARC tax funds.

5. Mayor's Report

Former American Fork City Mayor Ted Barrett was invited forward during the Mayor's report. Mayor Ted Barrett reported he sat on the Eldred Sunset Manor Foundation Board. The Eldreds had lived in Provo, Utah, in Pioneer Park where the fitness center was located and where they owned a small amusement park. He noted that the Eldreds built a "debtors' hospital" for people who could not afford treatment. They created a foundation to sell assets to support the Senior Citizens of Provo City. This fund had grown enough to provide some funds to many of the Senior Citizen groups in Utah County. The Eldreds wanted the Council to know that there were people (such as the Eldred Sunset Manor foundation Board) who were helping the Senior Citizens in American Fork. Mayor Frost asked where the fund started. Mayor Barrett responded when the assets were sold, they gained \$350,000. It was suggested to invest in Apple, Coca Cola, and Zions. The money given out was just the interest on the earnings. They also fund scholarships at UVU for single mothers.

Mayor Frost reported that December 8th was a busy day. He attended the breakfast at Tangie's Restaurant celebrating the 15-year anniversary. The Fire and Police Departments were also in attendance. In addition, he attended a dinner hosted by American Fork High School Honor students during which the students served dinner to about 250 senior citizens. They also followed up with a concert by Joshua Creek. He noted that he rode along with Santa Clause during the street lighting in American Fork City.

COMMON CONSENT AGENDA

Common Consent is that class of Council action that requires no further discussion or which is routine in nature. All items on the common Consent agenda are adopted by a single motion unless removed from the common consent Agenda.)

1. Approval of the November 13, 2018, City Council Minutes
2. Approval of the November 27, 2018, City Council Minutes

Council Member Shelton moved to approve the Common Consent Agenda. Council Member Christiansen seconded the motion. Voting was as follows:

RESULT:	APPROVED [UNANIMOUS]
MOVER:	Rob Shelton, Council Member
SECONDER:	Barbara Christiansen, Council Member
AYES:	Barnes, Carroll, Christiansen, Shelton, Taylor

ACTION ITEMS

1. Ratification of City payments (November 20, 2018 to December 4, 2018) and approval of purchase requests over \$25,000.

Council Member Shelton moved to approve the ratification of City payments (November 20, 2018 to December 4, 2018) and to approval purchase requests over \$25,000. Council Member Taylor seconded the motion. Voting was as follows:

RESULT:	ADOPTED [UNANIMOUS]
MOVER:	Rob Shelton, Council Member
SECONDER:	Clark Taylor, Council Member
AYES:	Barnes, Carroll, Christiansen, Shelton, Taylor

2. Review and action on a Performance-in-Lieu Agreement with Toby Adamson regarding actual construction in lieu of providing an Improvements Construction Guarantee associated with Sunrise Estates Plat B. (Requested by Scott Sensanbaugher, Public Works)

Council Member Shelton moved to approve the Performance-in-Lieu Agreement with Toby Adamson for Sunrise Estates Plat B and authorize the city to execute the documents. Council Member Taylor seconded the motion. Voting was as follows:

RESULT:	ADOPTED [UNANIMOUS]
MOVER:	Rob Shelton, Council Member
SECONDER:	Clark Taylor, Council Member
AYES:	Barnes, Carroll, Christiansen, Shelton, Taylor

3. Review and action on an agreement with Community Services Analysis, LLC to provide consulting services at the American Fork Fitness Center. (Requested by Derric Rykert, Parks and Recreation)

Mayor Frost invited Mr. Rykert to answer questions from the Council.

Council Member Shelton asked about real estate for sale around the area and asked if this property might be included as well. Mr. Rykert stated that the study would help evaluate the properties. They were working with Mr. Bunker and a realtor on the matter.

Mayor Frost commented that there was no parking.

Council Member Carroll said there was no recommendation to do different things with the facility. Mr. Rykert explained that they received two proposals; one was very strong on the facility itself and the other was more about the trends. Staff would provide recommendations according to trends as to how to best utilize the facility.

Council Member Taylor stated that if they included additions, this would be the foundational start. Mr. Rykert concurred. He said they would then find out from the residents how they should expand the facility.

Council Member Christiansen asked for a time frame, to which Mr. Rykert responded 90 days.

Council Member Shelton stated the facility was 25 years old. He said it was great to hear from the community to see what they wanted in a facility.

Council Member Barnes moved to approve authorization of the Consultant Services Agreement with Community Services Analysis LLC. Council Member Christiansen seconded the motion. Voting was as follows:

RESULT:	ADOPTED [4 TO 0]
MOVER:	Kevin Barnes, Council Member
SECONDER:	Barbara Christiansen, Council Member
AYES:	Kevin Barnes, Staci Carroll, Barbara Christiansen, Clark Taylor
RECUSED:	Rob Shelton

4. Review and action on a Construction Contract for the West Main Street Water Line Replacement (WA201807) Construction Contract. (Requested by Scott Sensanbaugher, Public Works)

Council Member Taylor moved to accept the bid submitted by Noland and Son Construction, Inc. for construction of the west Main Street Water Line project in the amount of \$419,042.00 and approve the construction contract as presented. Council Member Carroll seconded the motion. Voting was as follows:

RESULT:	ADOPTED [4 TO 0]
MOVER:	Clark Taylor, Council Member
SECONDER:	Staci Carroll, Council Member
AYES:	Staci Carroll, Barbara Christiansen, Rob Shelton, Clark Taylor
RECUSED:	Kevin Barnes

5. Review and action on an ordinance enacting a new chapter of the American Fork City Municipal Code governing small cell facilities. (Requested by Terilyn Lurker, Recorder)

George Schade was introduced and gave a presentation on the item. He explained the small cell facilities were common and would become more prevalent in 2019-2020. The big cell carriers who were promising 5G were working on installing these facilities. 5G would be a large improvement on 4G speeds. This meant there needed to be more coverage within the community. This was the reason the legislature wanted to protect cities as these facilities were built. He explained the facilities were not huge towers; they would be installed in light poles fed by fiber optics.

Council Member Shelton asked about the possible revenue. Mr. Merrill explained that it was all statutory, and the legislature was limiting what cities could charge. There would be an application fee for the permit and annual rent. Council Member Shelton asked if the City was a good location. Mr. Schade stated the fiber that ran along the railroad was for transport, and this would give them some options. Council Member Shelton asked if they should require conduits to be installed so they could put in fiber in newer subdivisions. Mr. Schade responded in the affirmative and explained that this was what the ISPs wanted. He added that the City needed to address its Transportation Master Plan.

Mr. Schade said they were working on improving the internet coverage. One of the biggest reasons to improve the network was medical uses.

Council Member Barnes asked how many facilities would be in the City. Mr. Schade said this would depend on how many providers were interested; there could be up to 30 in a neighborhood. Council Member Barnes asked how far away from the facility they could reach, to which Mr. Schade responded within a City block.

Council Member Barnes asked if there were other ordinances that they worked from in creating this ordinance. Mr. Merrill responded there had not been enough time to see what other cities had done. Mr. Schade said the big four carriers were working on this issue.

Council Member Carroll moved to adopt the ordinance enacting a new chapter of the city code governing small cell facilities. Council Member Taylor seconded the motion. Voting was as follows:

RESULT:	ADOPTED [UNANIMOUS]
MOVER:	Staci Carroll, Council Member
SECONDER:	Clark Taylor, Council Member
AYES:	Barnes, Carroll, Christiansen, Shelton, Taylor

6. Review and action on approval of the contract to purchase a new ambulance and brush truck. (Requested by Terilyn Lurker, Recorder)

Council Member Taylor moved to approve the contract to purchase the 2019 Horton ambulance for \$302,961 and the 2019 Brush Rescue truck for \$206,233.51. Council Member Christiansen seconded the motion. Voting was as follows:

RESULT:	ADOPTED [UNANIMOUS]
MOVER:	Clark Taylor, Council Member
SECONDER:	Barbara Christiansen, Council Member
AYES:	Barnes, Carroll, Christiansen, Shelton, Taylor

7. Review and action on a Construction Contract for the Spring Line Replacement (WA201803) Construction Contract. (Requested by Scott Sensanbaugher, Public Works)

Council Member Taylor moved to accept the bid submitted by Condie Construction Company for construction of the Spring Line Replacement in the amount of \$2,868,870.00 and to approve the construction contract as presented. Council Member Barnes seconded the motion.

Council Member Shelton asked if this would be included in next year's budget. Mr. Maurer answered in the affirmative. He added they had currently approved a \$6 million-dollar budget which would cover one year. They would make changes as necessary. This depended on what water fund was available in the future.

Council Member Barnes asked for a time frame. Mr. Sensanbaugher responded they would proceed in January; they wanted to finish the project by the spring.

Council Member Carroll asked if this was the entire spring line. Mr. Sensanbaugher responded it would not reach the tank where chlorinator was located. There was another segment in Golf Course to do at a future time. They were coordinating with Pleasant Grove's project.

Mayor Frost called for a vote. Voting was as follows:

RESULT:	ADOPTED [UNANIMOUS]
MOVER:	Clark Taylor, Council Member
SECONDER:	Kevin Barnes, Council Member
AYES:	Barnes, Carroll, Christiansen, Shelton, Taylor

8. Review and action on an ordinance setting the time and place of the 2019 City Council meetings. (Requested by Terilyn Lurker, Recorder)

Mayor Frost noted they had taken Steel Days and holidays in 2019 into account. Mr. Bunker noted the change of the Council retreat date to February 7 and 8. Council Member Barnes commented there was only one meeting in July and August. Mayor Frost noted the Primary election for Council was the same night as the meeting would have been scheduled in August.

Council Member Carroll moved to adopt the ordinance setting the time and place of City Council meetings with the change of removing January 24th and 25th and substituting February 7th and 8th for the retreat. Council Member Christiansen seconded the motion.

Voting was as follows:

RESULT:	ADOPTED [UNANIMOUS]
MOVER:	Staci Carroll, Council Member
SECONDER:	Barbara Christiansen, Council Member
AYES:	Barnes, Carroll, Christiansen, Shelton, Taylor

9. Consideration and action to enter into a closed session to discuss the character or professional competence of individuals, to discuss pending or reasonably imminent litigation, to discuss the purchase, lease or sale of real property, or to discuss other items described in Utah State Code 52-4-204 and 52-4-205.

Council Member Taylor moved to enter into a closed session in the downstairs work room at 8:30 p.m. Council Member Barnes seconded the motion. Voting was as follows:

RESULT:	ADOPTED [UNANIMOUS]
MOVER:	Clark Taylor, Council Member
SECONDER:	Kevin Barnes, Council Member
AYES:	Barnes, Carroll, Christiansen, Shelton, Taylor

The City Council entered a closed session to discuss the professional character and competence of individuals and pending or reasonably imminent litigation at 8:35 p.m. Those present included Mayor Frost, Council Member Barnes, Council Member Carroll, Council Member Christiansen, Council Member Shelton and Council Member Taylor. Also, present were City Administrator David Bunker, City Civil Attorney Tim Merrill, Fire Chief Aaron Brems, and Deputy City Recorder Lauralee Hill.

Pending or reasonably imminent litigation was discussed, and audio recorded as required by law. This portion of the closed session ended at 9:15 p.m.

Council Member Taylor moved to return to the regular session at 9:15 p.m. Council Member Shelton seconded the motion. All were in favor.

10. Adjournment

Council Member Christiansen moved to adjourn the meeting. Council Member Shelton seconded the motion. All were in favor.

The meeting adjourned at 9:16 p.m.



Lauralee Hill, Deputy Recorder